SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 5785 of 2019 (YEAR: 2019)

CORAM: ARUN MISHRA, U.U. LALIT

Bikram Chatterjee
... Appellant(s) / Petitioner(s)
Versus
Union of India (Amrapali Group)
... Respondent(s)

Acts Referred:	Real Estate (Regulation and Development) Act, 2016, Insolvency and Bankruptcy Code, 2016
Sections:	Article 142, Section 8 RERA

JUDICIAL HEADNOTE & SUMMARY

Exercised Article 142 powers to cancel RERA registration of Amrapali Group, ordering forensic audit and assigning stalled projects to NBCC to protect 42,000 homebuyers.

RATIO DECIDENDI

The Court held that: Exercised Article 142 powers to cancel RERA registration of Amrapali Group, ordering forensic audit and assigning stalled projects to NBCC to protect 42,000 homebuyers. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Bikram Chatterjee v. Union of India (Amrapali Group) (Civil Appeal No. 5785 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Real Estate (Regulation and Development) Act, 2016, Insolvency and Bankruptcy Code, 2016, particularly Article 142, Section 8 RERA. Exercised Article 142 powers to cancel RERA registration of Amrapali Group, ordering forensic audit and assigning stalled projects to NBCC to protect 42,000 homebuyers.

OPERATIVE ORDER

ORDER: Decided